

The Court finds that Plaintiff has failed to meet her burden under CRC Rule 3.1700(b)(2) and 612 S. LLC to identify specific items and demonstrate that each challenged cost is improper, unnecessary, or unreasonable. Plaintiff's objections are conclusory and unsupported by competent evidence. Defendant's verified Memorandum of Costs constitutes *prima facie* evidence of the necessity and reasonableness of the claimed costs, which Plaintiff has not overcome.

Ruling

1. Plaintiff's Motion to Tax Costs is **denied** in its entirety.
2. Defendant Ekso Bionics, Inc. is awarded costs in the total amount of \$25,968.32 as claimed in its Memorandum of Costs filed November 24, 2025.
3. Each party shall bear their own costs and fees incurred in connection with this motion.

8. 9:00 AM CASE NUMBER: C23-00908
CASE NAME: ABDO NASSER VS. DOES 1 TO 50
HEARING ON DEMURRER TO: CROSS-COMPLAINT OF T-MOBILE WEST LLC
FILED BY: MW CELL REIT 1 LLC
TENTATIVE RULING:

The hearing on MW Cell's Demurrer is **continued to November 25, 2026**, to be heard in concurrently with Cross-Defendants Abdo Nasser and Raja Nasser's Demurrer and Motion to Strike directed toward T-Mobile's Cross-Complaint.

9. 9:00 AM CASE NUMBER: C23-02436
CASE NAME: DENNIS WANKEN VS. NAHLA DROUBI
***HEARING ON MOTION IN RE: LEAVE TO FILE SECOND AMENDED CROSS-COMPLAINT FILED BY: DROUBI, NAHLA (CONTINUED FROM 3/11/26)**
FILED BY:
TENTATIVE RULING:

Cross-Complainant Nahla Droubi's motion for leave to file a second amended cross-complaint is **granted**. Droubi shall file and serve the second amended cross-complaint within 10 days of the notice of entry of this order.

The Court previously heard Droubi's motion for leave to file a second amended cross-complaint. The Wankens opposed Droubi's motion for leave to amend, arguing that the motion does not comply with California Rules of Court, rule 3.1324(a)(2)-(3) and (b). The Court agreed that this motion was not compliant with rule 3.1324.

This matter was continued to allow Droubi to file and serve a redlined version of the proposed second amended complaint showing all amendments and a declaration compliant with rule 3.1324(b). The parties were given the chance to file new opposition and reply briefs.

Droubi has now filed a declaration and a copy of the proposed second amended cross-complaint. The Court has reviewed these filings. The Wankens did not file a new opposition opposing

this motion on substantive grounds.

On the merits, there is “a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial [citations]...” (*Magpali v. Farmers Group* (1996) 48 Cal.App.4th 471, 487.) Leave to amend can be denied where there is “ ‘inexcusable delay and probable prejudice to the opposing party’ ... [Citation.]” (*Ibid*; see also, *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048 (even assuming there is unreasonable delay, “it is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.”).)

Here, Droubi seeks to add a slander of title claim and make other small changes to the cross-complaint. The original cross-complaint was filed in April 2024 and this motion was filed in December 2025. Droubi has provided no explanation for the delay in bringing the slander of title claim, however there is also no showing of prejudice. The Court **grants** this motion.

10. 9:00 AM CASE NUMBER: C23-02436

CASE NAME: DENNIS WANKEN VS. NAHLA DROUBI

***HEARING ON MOTION IN RE: STRIKE PORTIONS OF FIRST AMENDED COMPLAINT**

FILED BY: DROUBI, NAHLA

TENTATIVE RULING:

Defendant Nahla Droubi’s motion to strike punitive damages from the first amended complaint is **granted with leave to amend**. Plaintiffs have 10 days from the notice of entry of this order to file an amended complaint.

Defendant seeks to strike the punitive damages allegations. (FAC ¶49, the “punitive damages” language in prayer for relief 1.)

In the FAC, Plaintiffs sued for breach of contract, unjust enrichment, trespass and contribution under Civil Code section 845. Plaintiffs own 30 Echo Hill Lane and Defendant owns 22 Echo Hill Lane. (FAC ¶¶8-9.) Echo Hill Lane is a private roadway that connects both parties’ properties to Warfield Drive. (FAC ¶¶8-9.) Defendant’s property uses the roadway pursuant to an express easement. (FAC ¶9.) The parties also entered into a maintenance agreement for the roadway. (FAC ¶¶10, 11.)

In 2021, Plaintiffs told Defendant that the roadway needed to be replaced and asked Defendant to pay for half of the work. (FAC ¶¶12, 13.) In 2023, Plaintiffs got the opinion of a structural and civil engineer stating that the roadway needed to be repaved. (FAC ¶¶14, 15.) Later in August 2023, Plaintiffs had the roadway repaved for \$94,500. (FAC ¶16.) Defendant has not paid for her half of the roadway costs. (FAC ¶17.)

The punitive damages allegations relate to the trespass claim. In the trespass claim, Plaintiffs also own 18 Echo Hill Lane, which is next to a portion of the easement area (Echo Hill Lane). Plaintiffs allege that Defendant and her guests use a footpath next to the express easement and that this footpath goes onto Plaintiffs’ property outside of the easement area. (FAC ¶43.) Plaintiffs also allege that they put up walls to block the footpath, but after that Defendant and her guests started using the driveway for 18 Echo Hill Lane. (FAC ¶44.) Plaintiff alleges that Defendant’s behavior “was knowing,